



CITY OF ITHACA

108 E. Green St. — Third Floor Ithaca, NY 14850-5690

DEPARTMENT OF PLANNING AND DEVELOPMENT

Lisa Nicholas, AICP, Director

Telephone: Planning & Development – 607-274-6550

E-Mail: dgrunder@cityofithaca.org

Community Development/IURA – 607-274-6565

BOARD OF ZONING APPEALS (BZA) AGENDA

The regular monthly meeting of the BOARD OF ZONING APPEALS will be held at 4:30 p.m. on Tuesday, January 6, 2025. This meeting is open to the public and will be held in Common Council Chambers, Third Floor, City Hall, 108 E. Green Street, Ithaca, NY, and also conducted remotely using videoconferencing technology. Members of the public are strongly encouraged to participate remotely. Virtual participation in public meetings is authorized by Part WW of Chapter 56 of the Laws of 2022 of New York State and Local Law 2022-05. More information, including the written procedures governing the use of videoconferencing technology, is available at <http://www.cityofithaca.org/339/Boards-Committees>.

For remote viewing/attendance: A live stream of the proceedings is available at https://www.youtube.com/channel/UC7RtjN1P_RFaFW2IVCnTrDg; a recording will be made available through the same link following the conclusion of the proceedings. If you are a member of the public wanting to observe the meeting, please simply watch the live stream. If you are an interested party and would like to sign up to speak at the meeting or submit written comments, please see the instructions at the end of the agenda.

- I. CALL TO ORDER & AGENDA REVIEW 4:30 PM
- II. CONTINUED APPEALS
None
- III. NEW APPEALS 4:35 PM
 - A. Appeal Number: ZONE-25-9
 - Address: 224 Floral Avenue & 410 Hudson Street
 - Zone: R-2c & R-2a
 - Applicant: Harris Beach Murtha Cullina PLLC
 - Property Owner: Diane Zahuranec
 - Public Hearing: Yes
 - Description: Appeal of the determination of the Zoning Administrator that the properties at 224 Floral Avenue and 410 Hudson Street do not have established rights to be used as short-term rentals that are not the primary residence of the host.
- IV. PRELIMINARY PRESENTATIONS
None
- V. APPROVAL OF MINUTES
November 2025
- VI. ADMINISTRATIVE MATTERS 5:15 PM
 - A. Upcoming Meetings

If you have a disability and would like specific accommodation in order to participate, please contact the City Clerk's Office at 274-6570 by 12:00 p.m., no later than 2 days (not including weekends and holidays) before the meeting.

B. BZA Training

VII. ADJOURNMENT

5:20 PM

ACCESSING ONLINE MEETING MATERIALS

Parties interested in reviewing application materials prior to the meeting may visit the City's website at <http://www.cityofithaca.org/368/Board-of-Zoning-Appeals> (select "Most Recent Agenda"), beginning one week before the scheduled BZA meeting. Please do not hesitate to contact our office if you have any questions or need any assistance accessing the materials.

COMMENTS & QUESTIONS

Interested parties are invited to speak or submit written comments on appeals that come before the Board of Zoning Appeals. The Board considers "interested parties" persons who live, work or own property within 750 feet of the property, who are authorized representatives of recognized adjacent neighborhood civic groups, or who are elected City officials. **Interested parties wishing to be heard must register by 3:00 PM on the day of the meeting.** To register, please send your name and address to zoningdivision@cityofithaca.org, subject line: "BZA Speaker Registration – January 2026".

Interested parties may submit comments for public hearings by mail or email. **All comments must be received by 3 p.m. on the day of the meeting,** and they will be included in the record. Each comment is limited to three minutes. Indicate in your email that the comment is for a public hearing and please include your name and address. All comments and questions can be emailed to Megan Wilson at zoningdivision@cityofithaca.org or call (607) 274-6550.



Record No:
ZONE-25-9

Zoning Review
Application

Status: Active

Submitted On:
10/27/2025

Primary Location

224 FLORAL AVE
Ithaca, NY 14850

Owner

Zahuranec, Diane
Floral Ave 224 Ithaca, NY
14850

Applicant

 Amelia McLean-Robertson


 333 West Washington Street
Suite 200
Syracuse, NY 13202

Zoning Review Application

Building Permit #

Building Type*

Single or Two Family Dwelling

Are there any existing zoning variances for this
property?*

Unknown

Has a previous Zoning Review Application been made for
this proposal?*

No

Additional Application Notes

Harris Beach Murtha Cullina PLLC represents property owner Diane Zahuranec. Ms. Zahuranec seeks to appeal a Determination of Established Rights for short-term rental use at 224 Floral Avenue and 410 Hudson Street, signed by Megan Wilson, Deputy Director of Planning and Development, and dated October 15, 2025. Neither of these properties are Ms. Zahuranec's primary residence. Ms. Zahuranec seeks to continue the short-term rental use of these properties.

Ms. Zahuranec has been informed that, because her properties were not in compliance with the City Occupancy Tax at the time the City's Short-Term Rental Ordinance took effect on May 1, 2024, she does not hold vested rights to continue operating these properties as a non-conforming use. Ms. Zahuranec seeks to remedy the compliance issue regarding the City Occupancy Tax and pursue continued use of the properties as short-term rentals as a non-conforming use.

Anthony Pagano, Esq. and Amelia McLean-Robertson Esq. are available to provide any additional information.

Applicant Certification

I certify the information submitted with the Zoning Review Application is true to the best of my knowledge/belief. I also acknowledge that planning staff and the Board of Zoning Appeals may visit the property and I specifically permit such visits.

Applicant Signature*

✓ Amelia McLean Robertson
Oct 21, 2025



CITY OF ITHACA

108 E. Green St. — Third Floor Ithaca, NY 14850-5690

DEPARTMENT OF PLANNING AND DEVELOPMENT

Lisa Nicholas, AICP, Director

Planning & Development – 607-274-6550

E-Mail: dgrunder@cityofithaca.org

Community Development/IURA – 607-274-6565

To: Board of Zoning Appeals

From: Megan Wilson, Deputy Director of Planning & Development

Date: December 18, 2025

Re: ZONE-25-9, 224 Floral Avenue & 410 Hudson Street

At its meeting on January 6, 2026, the Board of Zoning Appeals will review an appeal of a zoning determination that I, acting as the City's Zoning Administrator, made regarding the properties at 224 Floral Avenue and 410 Hudson Street. Property owner Diane Zahuranec requested a determination of established rights to continue using both properties as full-time short-term rentals.

The City's Short-Term Rental Ordinance was adopted on May 1, 2024, and the new regulations allow a primary resident to offer all or part of their residence as a short-term rental upon obtaining a Short-Term Rental Operating Permit. Short-term rentals are only allowed in single- and two-family homes as well as owner-occupied units within a multiple dwelling or mixed-use building. Short-term rentals must have a valid Certificate of Compliance (required for all rental housing in the city) and are subject to City and County occupancy taxes. Ms. Zahuranec is not eligible for a Short-Term Rental Operating Permit for either 224 Floral Avenue or 410 Hudson Street because neither property is her primary residence.

Ms. Zahuranec asserted that she had established rights to continue her full-time short-term rental use of both properties. To have established rights to a nonconforming use, the property must have been in legal compliance with the previous regulations at the time of the adoption of the new legislation (§325-32). For short-term rentals, the property must have (1) maintained a valid Certificate of Compliance and (2) been current on all City and County Occupancy Taxes at the time the Short-Term Rental Ordinance was adopted on May 1, 2024. Upon review of records provided by the applicant, the City's Building Division, and the City Finance Department, it was found that Ms. Zahuranec had maintained a Certificate of Compliance for both properties and paid County taxes but was not current on City occupancy taxes. Additional details are provided in my attached zoning determination, dated October 15, 2025. Retroactive payment of back taxes does not bring the property into compliance for the purpose of establishing rights to a non-conforming use. Therefore, I, acting as Zoning Administrator, determined that Ms. Zahuranec did not have established rights to continue the short-term rental use of 224 Floral Avenue and 410 Hudson Street.

Attorneys for Ms. Zahuranec submitted an application to appeal this determination and maintain that the properties have established rights to the full-time short-term rental use. The Board of Zoning Appeals must review the appeal and decide whether the Zoning Administrator correctly applied the City of Ithaca Zoning Ordinance in the determination that:

1. The property owner failed to pay all required occupancy taxes; and
2. Failure to pay such taxes precludes the property from having established rights to the legal nonconforming use.

§ 325-32. General requirements.

- A. Any use, building or lot that was lawfully established prior to, and has been made nonconforming as of, the effective date or subsequent amendment of this chapter, may continue so long as the nonconformity remains otherwise lawful and complies with this section. Any rights conferred upon a nonconformity run with the property and are not affected by changes in tenancy or ownership.
- B. The burden of establishing the prior existence of a nonconformity is on the property owner or applicant. When applying for any permit or approval related to a nonconformity, the applicant may be required to submit evidence of a prior permit or other documentation showing that the nonconformity existed prior to the date on which it became nonconforming.
- C. When the boundaries of a district are changed to transfer a lot from one district to another district with different regulations, or when the use or area regulations of a district are changed, the provisions of this article shall apply to any nonconforming uses or structures created.



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DEPARTMENT OF PLANNING AND DEVELOPMENT

Lisa Nicholas, AICP, Director

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E-Mail: dgrunder@cityofithaca.org

Community Development/IURA – 607-274-6565

October 15, 2025

Diane Zahuranec
4551 Northeast Second Ave
Fort Lauderdale, FL 33334

RE: Determination of Established Rights for Short-Term Rental Use: 224 Floral Avenue & 410 Hudson Street

Dear Ms. Zahuranec,

You have requested a determination regarding your established rights to continue the short-term rental use of your properties at 224 Floral Avenue and 410 Hudson Street. Neither property is your primary residence. To have established rights to a nonconforming use, the property must have been in legal compliance with the previous regulations at the time of the adoption of the new legislation. For short-term rentals, the property must have (1) maintained a valid Certificate of Compliance and (2) been current on all City and County Occupancy Taxes at the time the Short-Term Rental Ordinance was adopted on May 1, 2024.

In evaluation of your request regarding 224 Floral Avenue, I have considered the following findings:

- The property located at 224 Floral Avenue is a single-family home purchased by Diane Zahuranec in October 2021.
- According to City records, 224 Floral Avenue was first identified as a short-term rental on December 1, 2022 and has been rented as a short-term rental consistently since that date.
- The City of Ithaca Building Division issued a Certificate of Compliance to Diane Zahuranec for the single-family dwelling at 224 Floral Avenue, dated 1/12/2022. The Certificate of Compliance is valid for five years, with an expiration date of 1/12/2027.
- Diane Zahuranec applied for a Certificate of Authority to collect City of Ithaca Occupancy Tax and was issued Certificate of Authority #1011 – Wine Country Inn II for 224 Floral Avenue on September 22, 2021.
- The first payment of City of Ithaca Occupancy Tax was made for Certificate of Authority #1011 – Wine Country Inn II on March 25, 2022 and continued quarterly through quarter 1 of 2023. Quarterly payments or declarations of no income have not been made since quarter 1 of 2023.

Based on the above findings, I have determined that Diane Zahuranec does not have established rights to continue the short-term rental use of the property at 224 Floral Avenue. The property was not in compliance with the previous regulations, specifically the payment of required City Occupancy Tax, at the time the City's Short-Term Rental Ordinance was adopted on May 1, 2024. Further use of the property as a short-term rental must comply with all requirements of the City of Ithaca Short-Term Rental Ordinance.

In evaluation of your request regarding 410 Hudson Street, I have considered the following findings:

- The property located at 410 Hudson Street is a two-family home purchased by Diane Zahuranec in October 2021.
- According to City records, 410 Hudson Street was first identified as a short-term rental on July 13, 2022 and has been rented as a short-term rental consistently since that date.
- The City of Ithaca Building Division issued a Certificate of Compliance to Diane Zahurabec for the single-family dwelling at 410 Hudson Street, dated 5/9/2022. The Certificate of Compliance is valid for five years, with an expiration date of 5/9/2027.
- Diane Zahuranec applied for a Certificate of Authority to collect City of Ithaca Occupancy Tax and was issued Certificate of Authority #1017 – Wine Country Inn III for 410 Hudson Street on December 1, 2021.
- No quarterly payments of City Occupancy Tax have been made for Certificate of Authority #1017 – Wine Country Inn III.

Based on the above findings, I have determined that Diane Zahuranec does not have established rights to continue the short-term rental use of the property at 410 Hudson Street. The property was not in compliance with the previous regulations, specifically the payment of required City Occupancy Tax, at the time the City's Short-Term Rental Ordinance was adopted on May 1, 2024. Further use of the property as a short-term rental must comply with all requirements of the City of Ithaca Short-Term Rental Ordinance.

A short-term rental operating permit is required for each dwelling unit used as a short-term rental. More information on the regulations and the operating permit application are available on the City's website at <https://www.cityofithaca.org/770/Short-Term-Rentals>.

Your right to appeal this determination is detailed in the Code of the City of Ithaca, Section 325-27K, and this order may be appealed to the City of Ithaca Board of Zoning Appeals. Your appeal must be received within sixty (60) days of the date of this letter.

If you have any questions, please feel free to contact me at (607) 274-6560 or mwilson@cityofithaca.org.

Sincerely,



Megan Wilson
Deputy Director of Planning and Development



CERTIFICATE OF COMPLIANCE

issued by the Building Division of

THE CITY OF ITHACA, NEW YORK

The Director of Code Enforcement hereby certifies that the building located at

224 Floral Avenue

used and occupied as a

*ONE (1) DWELLING UNITS IN A R-2c ZONE

conforms with the requirements of the applicable New York State Codes: the New York State Multiple Residence Law, if applicable, and the City of Ithaca Housing and Zoning Code as to minimum standards applicable to a building of its class and intended occupancy.

Declaration of intent has been made by the owner of this building that these standards of safety will be maintained and occupancy will be maintained in compliance with the zoning regulations of the City of Ithaca and issuance of this certificate is predicated upon this declaration.

This certificate is, therefore, summarily revocable when, as and if it is determined that said standards are not maintained. This certificate is not transferable.

Under present ownership, this certificate shall be valid for a maximum period of Five (5) year from the issue date.

Owner: Diane Zahuranec
4531 Northeast Second Ave
Fort Lauderdale, FL 33334

Electrical Certification: Bill M.

Date: 2/24/2014

Housing Code Supervisor

Dated: 1/12/2022

*Please note the conditions listed on the attached cover letter dated 1/31/2022



Reg # 1011 ✓

CITY OF ITHACA
108 East Green Street, Ithaca, New York 14850-5690
Office of City Controller

HOTEL, MOTEL, BED & BREAKFAST OCCUPANCY TAX
CERTIFICATE OF REGISTRATION

Date of Application: 9/17/21
Name of Establishment: Wine Country Inn II
Location: # and Street: 224 Floral Ave
City: Ithaca Municipality: Ithaca
Phone Number: [REDACTED] Email Address: [REDACTED]
Website: n/a Fed ID# or SS#: [REDACTED]

Owner of Record: Diane Zahuranec
Date Business Started: asap upon approval
Form of Ownership: Personal Ownership

Number of Rooms: 4 Months Available: 12
All Current Rates: Approx \$200/night

On Premises Manager: Kathleen Carney
Address for Correspondence: 219 LAKE ST PENN YAN, NY 14527-1802
And Reporting Forms: via Vacasa Management

Customer Booking Options (Circle all that apply):

Direct-Corporate Reservations ☐ Online Travel Agent ☐ AirBnB ☒
Other: Vacasa

RETURN TO: City of Ithaca
Controller's Office
108 East Green Street
Ithaca, NY 14850
SThayer@cityofithaca.org
607-274-6576



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-5690

Office of City Controller

Telephone: 607 / 274-6576

Fax: 607 / 274-6415

**City of Ithaca
Hotel Room Occupancy Tax
Certificate of Authority**

Certificate No.: 1011

Date: September 22, 2021

Wine Country Inn II is hereby authorized and required to impose a 5 percent tax upon the charge for room occupancy on and after April 1, 2021, pursuant to Local Law 2021-05 unless renewed by subsequent Local Law, subject to all the terms, conditions and exemptions contained in Local Law 2021-05, and payable to City of Ithaca to further the objectives outlined in the said Local Law.


Steven P. Thayer, City Controller

THIS CERTIFICATE IS NOT TRANSFERABLE, AND MUST BE SURRENDERED TO THE CITY OF ITHACA CONTROLLER UPON CESSATION OF BUSINESS OR UPON SALE OR TRANSFER. THIS CERTIFICATE MUST BE PROMINENTLY DISPLAYED.



CERTIFICATE OF COMPLIANCE

issued by the Building Division of

THE CITY OF ITHACA, NEW YORK

The Director of Code Enforcement hereby certifies that the building located at

410 Hudson Street

used and occupied as a

***TWO (2) DWELLING UNITS IN A R-2a ZONE**

conforms with the requirements of the applicable New York State Codes: the New York State Multiple Residence Law, if applicable, and the City of Ithaca Housing and Zoning Code as to minimum standards applicable to a building of its class and intended occupancy.

Declaration of intent has been made by the owner of this building that these standards of safety will be maintained and occupancy will be maintained in compliance with the zoning regulations of the City of Ithaca and issuance of this certificate is predicated upon this declaration.

This certificate is, therefore, summarily revocable when, as and if it is determined that said standards are not maintained. This certificate is not transferable.

Under present ownership, this certificate shall be valid for a maximum period of Five (5) year from the issue date.

Owner: Diane Zahuranec
4531 Northeast Second Ave
Fort Lauderdale, FL 33334

Electrical Certification: Per CM

Date: 12/12/2019

Housing Code Supervisor

Dated: 5/9/2022

*Please note the conditions listed on the attached cover letter dated 5/18/2022

1017

Reg. # 1017



CITY OF ITHACA
108 East Green Street, Ithaca, New York 14850-5690
Office of City Controller

HOTEL, MOTEL, BED & BREAKFAST OCCUPANCY TAX CERTIFICATE OF REGISTRATION

Date of Application: 12/17/21
Name of Establishment: Wine Country Inn III
Location: # and Street: 410 Hudson St
City: Ithaca Municipality: Ithaca
Phone Number: [REDACTED] Email Address: [REDACTED]
Website: n/a Fed ID# or [REDACTED]

Owner of Record: Diane Zahuranec
Date Business Started: asap upon approval
Form of Ownership: Personal Ownership

Number of Rooms: 6 Months Available: 12
All Current Rates: Approx \$200/Night

On Premises Manager: Kathleen Carney
Address for Correspondence: 219 Lake St, Penn Yan, NY 14527-1802
And Reporting Forms: Via Vacasa Management

Customer Booking Options (Circle all that apply):

Direct-Corporate Reservations ☐ Online Travel Agent ☐ AirBnB ☒
Other: Vacasa

RETURN TO: City of Ithaca
Controller's Office
108 East Green Street
Ithaca, NY 14850
SThayer@cityofithaca.org
607-274-6576



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-5690

Office of City Controller

Telephone: 607 / 274-6576

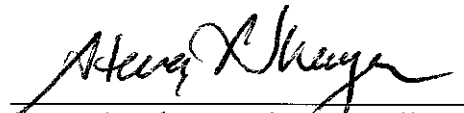
Fax: 607 / 274-6415

**City of Ithaca
Hotel Room Occupancy Tax
Certificate of Authority**

Certificate No.: 1017

Date: December 17, 2021

Wine Country Inn III is hereby authorized and required to impose a 5 percent tax upon the charge for room occupancy on and after April 1, 2021, pursuant to Local Law 2021-05 unless renewed by subsequent Local Law, subject to all the terms, conditions and exemptions contained in Local Law 2021-05, and payable to City of Ithaca to further the objectives outlined in the said Local Law.


Steven P. Thayer, City Controller

THIS CERTIFICATE IS NOT TRANSFERABLE AND MUST BE SURRENDERED TO THE CITY OF ITHACA CONTROLLER UPON CESSATION OF BUSINESS OR UPON SALE OR TRANSFER. THIS CERTIFICATE MUST BE PROMINENTLY DISPLAYED.



CITY OF ITHACA
108 East Green St Ithaca, New York 14850-5690

Chamberlain's Office
Telephone: 607-274-6580

To: Board of Zoning Appeals

From: Jessica Wright, City Chamberlain

Date: December 19, 2025

Re: Occupancy Tax Payments for Certificate of Authority #1011 & #1017

The Zoning Administrator has requested confirmation of occupancy tax payments made for Certificate of Authority #1011 and #1017.

Occupancy tax payments were made for Certificate of Authority #1011 on the following dates:

- 3/17/2022
- 6/14/2022
- 9/15/2022
- 12/12/2022
- 3/14/2023

There are no records of occupancy tax payments for Certificate of Authority #1017.

Jessica Wright
City Chamberlain
108 E Green Street
Ithaca, NY 14850

HARRIS BEACH MURTHA
ATTORNEYS AT LAW

119 EAST SENECA STREET
ITHACA, NEW YORK 14850
607.273.6444

ANTHONY F. PAGANO
MEMBER

October 22, 2025

via: Portal

City of Ithaca
Attn: Board of Zoning Appeals
City Hall
108 E. Green Street
Ithaca, NY 14850

RE: Request for a Determination of Pre-Existing Non-Conforming Use for Short-Term Rental Properties at 224 Floral Avenue & 410 Hudson Street

Dear Mr. David Barken, Chair

Harris Beach Murtha Cullina PLLC, represents Diane Zahuranec, the owner of 224 Floral Avenue and 410 Hudson Street (the "Properties") within the City of Ithaca. The Properties have been operated as short-term rental properties since 2022. Ms. Zahuranec does not reside at either property.

By letters dated August 4, 2025, from the Building Division of the Department of Planning & Development, Ms. Zahuranec was informed that the City found her to be in violation of Section 325-27D(3) of the City of Ithaca Code for not holding short-term rental operating permits for these properties (attached hereto as "Exhibit A"). At the time Ms. Zahuranec started operating the Properties as short-term rentals she was compliant with the City's local laws. Section 325-27 was added to the code in May 2024, and revised September 2025.

To become compliant with the new laws Ms. Zahuranec, provided applications for new short-term rental permits, requisite Certificates of Compliance Attestation (attached hereto as "Exhibit B"), and proof of Tompkins County Room Occupancy Tax payments (attached hereto as "Exhibit C").

However, Ms. Zahuranec was notified by letter dated October 15, 2025, that she did not have established rights to a non-conforming use, because she was not in compliance with the previous regulations at the time the City adopted new legislation for short-term rentals; at the time, Ms. Zahuranec owed the City's hotel occupancy tax (letter attached hereto as "Exhibit D").

I am writing to respectfully request that the Board of Zoning Appeals make a determination that the Properties as short-term rentals be recognized as a pre-existing non-conforming uses under the applicable zoning regulations.

Until Ms. Zahuranec received the letters dated August 4, the property use has been ongoing since before the current zoning ordinance and, therefore, should qualify for grandfathered status. Ms. Zahuranec was personally unaware of the city occupancy tax requirement but is ready to pay any outstanding taxes plus interest. All other applicable taxes are current, and we believe that the Properties comply with all other applicably City and State codes and zoning ordinances.

October 22, 2025

Page 2

As the use of the Properties has been consistent since 2022, and to Ms. Zahuranec's knowledge there have been no complaints from neighbors, adverse impact on nearby properties are not anticipated. Additionally, there are no anticipated impacts on the physical or environmental conditions of the neighborhood as this request is merely for the continuance of the use as a short-term rental; no physical changes to the property are being requested.

I kindly ask the Board to consider the longstanding nature of the use, its consistency with past zoning allowances, and the circumstances surrounding the tax issue.

Very truly yours,



Anthony F. Pagano

AFP:am

OWNER AUTHORIZATION

I, Diane Zahuranec, authorize Harris Beach Murtha Cullina, PLLC to submit this appeal to the City of Ithaca Board of Zoning Appeals on my behalf.

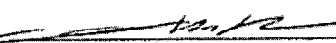
Dated: 10/23/25

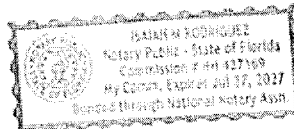

(Signature of Officer)

Diane Zahuranec
(Print Name and Title of Officer)

STATE OF Florida)
COUNTY OF Broward) ss.:

On October 23rd, 2025,
before me personally
came Diane Zahuranec owner of 224
Floral Avenue and 410 Hudson Street, located in the City of Ithaca in the County of Tompkins,
to me known to be the person(s) described in and who executed the foregoing instrument.
Such person(s) duly swore to such instrument before me and duly acknowledged that
he/she/they executed the same.


Notary Public
Commission Expires 07/27/27
(Affix Notary Stamp or Seal)





CITY OF ITHACA

108 East Green Street

Ithaca, NY 14850-5690

BUILDING DIVISION

DEPARTMENT OF PLANNING & DEVELOPMENT

4th Floor City Hall

Telephone: 607.274.6508

Email: bd@cityofithaca.org

August 4, 2025

ATTN: Diane Zahuranec
4531 NE Second Ave
Fort Lauderdale, FL 33334

RE: SHORT-TERM RENTAL COMPLIANCE ORDER
410 Hudson St, Ithaca, NY 14850
DELIVERED CERTIFIED MAIL

Dear Diane Zahuranec:

This letter advises you that, based on the City of Ithaca's records, a property you own or host short-term rentals at, 410 Hudson St, is in violation of the City of Ithaca Short-Term Rental Ordinance, Section 325-27D(3). Section 325-27D(8) of the Code of the City of Ithaca states: "It shall be a violation to rent, offer, or advertise a short-term rental without a valid short-term rental operating permit."

In accordance with City of Ithaca Code Section 325-47, Penalties for offenses, a property owner or host found to be in violation of any provisions of the short-term rental regulations will be subject to fines of up to \$500 per day. Additionally, a host found to be in violation of the regulations will be ineligible for a short-term rental operating permit for a period of three years.

The City has found that you are violating the ordinance by advertising a short-term rental unit in the City without a short-term rental operating permit and by renting out a unit on a short-term basis without a short-term rental operating permit.

As the designee of the Director of Planning and Development, I am hereby ordering that within seven days you cease operation of the property as a short-term rental or obtain a short-term rental operating permit. Ceasing operation will include removing all listings from public view or converting all listings to long-term rentals (stays of no less than 30 days).

For a full copy of the regulations and to apply, please visit the City of Ithaca's Short-Term Rental webpage at <https://www.cityofithaca.org/770/Short-Term-Rentals> or use the QR code below.



CITY OF ITHACA

108 East Green Street

Ithaca, NY 14850-5690

BUILDING DIVISION

DEPARTMENT OF PLANNING & DEVELOPMENT

4th Floor City Hall

Telephone: 607.274.6508

Email: jbd@cityofithaca.org

August 4, 2025

ATTN: Diane Zahuranec
4531 Northeast Second Ave
Fort Lauderdale, FL 33334

RE: SHORT-TERM RENTAL COMPLIANCE ORDER
224 Floral Avenue, Ithaca, NY 14850
DELIVERED CERTIFIED MAIL

Dear Diane Zahuranec:

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CITY OF ITHACA
108 East Green Street

Ithaca, NY 14850-5690

BUILDING DIVISION
DEPARTMENT OF PLANNING & DEVELOPMENT

4th Floor City Hall
Telephone: 607.274.6508

Email: ibd@cityofithaca.org

Maintenance of Certificate of Compliance Requirements Attestation

Short-Term Rental Permit Holder Name: Diane Zahuranec

Property Address: 410 Hudson Street Ithaca, NY 14850

I attest that I am maintaining the building and systems in compliance with all applicable New York State Codes, Ithaca Housing Code, Ithaca Exterior Maintenance Code, and the City of Ithaca Zoning Ordinance or any other applicable law or regulations pertaining to the maintenance and safety of this property.

SIGNED Diane Zahuranec DATE 09/30/2025



Finance Dept – Treasury Division

125 East Court St., Ithaca, NY 14850
(607) 274-5542

**HOTEL, MOTEL, BED & BREAKFAST OCCUPANCY TAX
CERTIFICATE OF REGISTRATION**

DATE OF APPLICATION: 5/26/22

NAME OF ESTABLISHMENT: Wine Country Inn III

LOCATION: # and Street : 410 Hudson St

City: Ithaca, NY 14850

MUNICIPALITY: Ithaca

PHONE NUMBER: _____ EMAIL ADDRESS: _____

OWNER OF RECORD: Diane Zahuranec

DATE BUSINESS STARTED: 6/15/22

NUMBER OF ROOMS: 5 WEBSITE: www.vacasa.com

MONTHS OF AVAILABILITY: 12 months

ALL CURRENT RATES: \$200/night

ON PREMISES MANAGER: Terri Starr

ADDRESS FOR CORRESPONDENCE 4551 NE 2nd Ave, Fort Lauderdale, FL 33334

& REPORTING FORMS: _____

CUSTOMER BOOKING OPTIONS (Circle all that apply):

Direct-Corporate Reservation -- Online Travel Agent - AirBnB - Other (Vacasa)

PERMISSION TO LIST ADDRESS IN *ITHACA VISITOR'S BUREAU* TRAVEL GUIDE: ☒ YES ☐ NO

RETURN TO: TOMPKINS COUNTY FINANCE DEPT – TREASURY DIVISION

125 E. COURT ST., ITHACA, NY 14850

LSCHOTT@TOMPKINS-CO.ORG

607 274-5542

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

Exhibit C

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202300656

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:03

PAYOR: ROOM TAX
REGISTER DATE: 03/22/23

9

ROOM TAX	1Q23 458	\$31,180.58
ROOM TAX	1Q23 029	\$14,312.50
ROOM TAX	1Q23 252	\$392.80
ROOM TAX	1Q23 483	\$102.15
ROOM TAX	1Q23 482	\$127.12
ROOM TAX	1Q23 218	\$465.27
ROOM TAX	1Q23 457	\$793.88
ROOM TAX	1Q23 94	\$2,994.12
ROOM TAX	1Q23 61	\$160.65

TOTAL DUE: \$50,529.07

CHECK	:	\$160.65	REF NUM:	2435
CHECK	:	\$2,994.12	REF NUM:	4533
CHECK	:	\$793.88	REF NUM:	2641
CHECK	:	\$465.27	REF NUM:	3504
CHECK	:	\$229.27	REF NUM:	1028
CHECK	:	\$392.80	REF NUM:	1113
CHECK	:	\$14,312.50	REF NUM:	1000001917
CHECK	:	\$31,180.58	REF NUM:	004562

TENDERED
\$50,529.07

CHANGE
\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202301670

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:03

PAYOR: ROOM TAX
REGISTER DATE: 08/15/23

4

ROOM TAX	2Q23 483	\$313.29
INT & PENALTIES-ROOM TAX	2Q23 483	\$31.23
ROOM TAX	2Q23 475	\$332.45
INT & PENALTIES-ROOM TAX	2Q23 475	\$35.24

TOTAL DUE: \$712.21

CHECK	:	\$367.69	REF NUM:	114
CHECK	:	\$344.52	REF NUM:	116

TENDERED	CHANGE
\$712.21	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202301904

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:04

PAYOR: ROOM TAX
REGISTER DATE: 09/18/23

7

ROOM TAX	3Q23 438	\$10,587.20
ROOM TAX	3Q23 99	\$5,076.40
ROOM TAX	3Q23 318	\$378.86
ROOM TAX	3Q23 235	\$1,894.50
ROOM TAX	3Q23 411	\$414.52
ROOM TAX	3Q23 483	\$255.76
ROOM TAX	3Q23 340	\$445.27

TOTAL DUE: \$19,052.51

CHECK	:	\$445.27	REF NUM:	2884
CHECK	:	\$414.52	REF NUM:	114
CHECK	:	\$255.76	REF NUM:	120
CHECK	:	\$1,894.50	REF NUM:	1413
CHECK	:	\$378.86	REF NUM:	2573
CHECK	:	\$5,076.40	REF NUM:	10166
CHECK	:	\$10,587.20	REF NUM:	00641

TENDERED
\$19,052.51

CHANGE
\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: LA202300715

RECEIVED BY: LA
TODAY'S DATE: 10/01/25
TIME: 13:04

PAYOR: ROOM TAX
REGISTER DATE: 12/28/23

4

ROOM TAX	4Q23 #482	\$783.92
ROOM TAX	4Q23 #475	\$16.43
ROOM TAX	4Q23 #483	\$84.26
ROOM TAX	4Q23 #479	\$192.52

TOTAL DUE: \$1,077.13

CHECK	:	\$192.52	REF NUM:	125
CHECK	:	\$84.26	REF NUM:	124
CHECK	:	\$16.43	REF NUM:	123
CHECK	:	\$783.92	REF NUM:	122

TENDERED
\$1,077.13

CHANGE
\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: LS202400083

RECEIVED BY: LS
TODAY'S DATE: 10/01/25
TIME: 13:04

PAYOR: ROOM TAX
REGISTER DATE: 03/29/24

3

ROOM TAX	1Q24 #187	\$5.50
ROOM TAX	1Q24 #202	\$994.82
ROOM TAX	1Q24 #483	\$226.69

TOTAL DUE: \$1,227.01

CHECK	:	\$226.69	REF NUM:	#203
CHECK	:	\$5.50	REF NUM:	#157
CHECK	:	\$994.82	REF NUM:	#202

TENDERED	CHANGE
\$1,227.01	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202401461

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:05

PAYOR: ROOM TAX
REGISTER DATE: 08/05/24

4

ROOM TAX	2Q24 475	\$167.65
INT & PENALTIES-ROOM TAX	2Q24 475	\$16.77
ROOM TAX	2Q24 483	\$44.05
INT & PENALTIES-ROOM TAX	2Q24 483	\$4.41

TOTAL DUE: \$232.88

CHECK	:	\$48.46	REF NUM:	211
CHECK	:	\$184.42	REF NUM:	210

TENDERED	CHANGE
\$232.88	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202401658

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:05

PAYOR: ROOM TAX
REGISTER DATE: 09/09/24

7

ROOM TAX	3Q24 411	\$257.60
ROOM TAX	3Q24 410	\$202.25
ROOM TAX	3Q24 414	\$298.03
ROOM TAX	3Q24 479	\$1,669.83
ROOM TAX	3Q24 483	\$78.85
ROOM TAX	3Q24 475	\$1,158.40
ROOM TAX	3Q24 245	\$1,634.30

TOTAL DUE: \$5,299.26

CHECK	:	\$1,634.30	REF NUM: 200
CHECK	:	\$1,158.40	REF NUM: 213
CHECK	:	\$78.85	REF NUM: 214
CHECK	:	\$1,669.83	REF NUM: 215
CHECK	:	\$298.03	REF NUM: 188
CHECK	:	\$202.25	REF NUM: 207
CHECK	:	\$257.60	REF NUM: 496

TENDERED
\$5,299.26

CHANGE
\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202402515

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:05

PAYOR: ROOM TAX
REGISTER DATE: 12/31/24

12

ROOM TAX	4Q24 292	\$417.20
ROOM TAX	4Q24 410	\$135.50
ROOM TAX	4Q24 411	\$88.15
ROOM TAX	4Q24 128	\$118,121.94
ROOM TAX	4Q24 438	\$7,030.44
ROOM TAX	4Q24 193	\$72,458.61
ROOM TAX	4Q24 94	\$5,459.18
ROOM TAX	4Q24 457	\$2,327.86
ROOM TAX	4Q24 491	\$3,186.75
ROOM TAX	4Q24 475	\$1,100.50
ROOM TAX	4Q24 483	\$78.85
ROOM TAX	4Q24 479	\$624.45

TOTAL DUE: \$211,029.43

CHECK	:	\$624.45	REF NUM:	217
CHECK	:	\$78.85	REF NUM:	218
CHECK	:	\$1,100.50	REF NUM:	219
CHECK	:	\$3,186.75	REF NUM:	264
CHECK	:	\$2,327.86	REF NUM:	2774
CHECK	:	\$5,459.18	REF NUM:	6838
CHECK	:	\$72,458.61	REF NUM:	34776
CHECK	:	\$7,030.44	REF NUM:	00766
CHECK	:	\$118,121.94	REF NUM:	10418
CHECK	:	\$88.15	REF NUM:	509
CHECK	:	\$135.50	REF NUM:	210
CHECK	:	\$417.20	REF NUM:	1623

TENDERED
\$211,029.43

CHANGE
\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202500808

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:05

PAYOR: ROOM TAX
REGISTER DATE: 03/24/25

3

ROOM TAX	1Q25 479	\$173.96
ROOM TAX	1Q25 475	\$143.90
ROOM TAX	1Q25 483	\$76.81

TOTAL DUE: \$394.67

OTHER : \$394.67 REF NUM: cc

TENDERED	CHANGE
\$394.67	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202501656

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:05

PAYOR: ROOM TAX
REGISTER DATE: 06/23/25

4

ROOM TAX	2Q25 479	\$105.58
ROOM TAX	2Q25 475	\$681.44
ROOM TAX	2Q25 483	\$499.97
ROOM TAX	2Q25 514	\$266.54

TOTAL DUE: \$1,553.53

OTHER : \$1,553.53 REF NUM: cc

TENDERED	CHANGE
\$1,553.53	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202502525

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:05

PAYOR: ROOM TAX
REGISTER DATE: 09/22/25

4

ROOM TAX	3Q25 490	\$938.80
ROOM TAX	3Q25 483	\$420.72
ROOM TAX	3Q25 475	\$1,535.57
ROOM TAX	3Q25 479	\$899.27

TOTAL DUE: \$3,794.36

OTHER : \$3,794.36 REF NUM: cc

TENDERED	CHANGE
\$3,794.36	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: BS202200130

RECEIVED BY: BS
TODAY'S DATE: 10/01/25
TIME: 13:06

PAYOR: ROOM TAX
REGISTER DATE: 03/22/22

1

ROOM TAX 1QTR22#475 \$120.40

TOTAL DUE: \$120.40

CHECK : \$120.40 REF NUM: 119829

TENDERED CHANGE
\$120.40 \$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: BS202200308

RECEIVED BY: BS
TODAY'S DATE: 10/01/25
TIME: 13:07

PAYOR: ROOM TAX
REGISTER DATE: 06/21/22

1

ROOM TAX	2QTR22#475	\$462.17

	TOTAL DUE:	\$462.17

CHECK : \$462.17 REF NUM: 135152

TENDERED	CHANGE
\$462.17	\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202201885

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:07

PAYOR: ROOM TAX
REGISTER DATE: 09/26/22

7

ROOM TAX	3Q22 456	\$506.30
ROOM TAX	3Q22 482	\$91.70
ROOM TAX	3Q22 479	\$75.35
ROOM TAX	3Q22 475	\$372.90
ROOM TAX	3Q22 61	\$797.00
ROOM TAX	3Q22 458	\$95,561.08
ROOM TAX	3Q22 446	\$423.58

TOTAL DUE: \$97,827.91

CHECK	:	\$423.58	REF NUM:	405
CHECK	:	\$95,561.08	REF NUM:	004237
CHECK	:	\$797.00	REF NUM:	2270
CHECK	:	\$372.90	REF NUM:	1003
CHECK	:	\$91.70	REF NUM:	1004
CHECK	:	\$75.35	REF NUM:	1005
CHECK	:	\$506.30	REF NUM:	164

TENDERED
\$97,827.91

CHANGE
\$.00

Tompkins County
Finance Department
125 E. Court St. Ithaca, NY 14850
Telephone (607) 274-5545

TOMPKINS COUNTY

PAGE 1

RECEIPT NUMBER: MP202202509

RECEIVED BY: MP
TODAY'S DATE: 10/01/25
TIME: 13:03

PAYOR: ROOM TAX
REGISTER DATE: 12/19/22

17

ROOM TAX	422 11/22	\$31,304.09
ROOM TAX	4Q22 294	\$10,553.53
ROOM TAX	4Q22 381	\$1,575.43
ROOM TAX	4Q22 10	\$28,997.46
ROOM TAX	4Q22 377	\$333.00
ROOM TAX	4Q22 479	\$144.15
ROOM TAX	4Q22 482	\$166.21
ROOM TAX	4Q22 483	\$97.20
ROOM TAX	4Q22 255	\$6.25
ROOM TAX	4Q22 454	\$208.00
ROOM TAX	4Q22 235	\$1,270.35
ROOM TAX	4Q22 211	\$15,016.00
ROOM TAX	4Q22 67	\$116,252.67
ROOM TAX	4Q22 477	\$3,007.34
ROOM TAX	4Q22 442	\$196.71
ROOM TAX	4Q22 93	\$52,498.45
ROOM TAX	4Q22 475	\$1,221.88

TOTAL DUE: \$262,848.72

CHECK	:	\$31,304.09	REF NUM:	2126044
CHECK	:	\$10,553.53	REF NUM:	9081
CHECK	:	\$1,575.43	REF NUM:	36173
CHECK	:	\$28,997.46	REF NUM:	29871
CHECK	:	\$333.00	REF NUM:	311901
CHECK	:	\$407.56	REF NUM:	1012
CHECK	:	\$6.25	REF NUM:	3349
CHECK	:	\$208.00	REF NUM:	4489
CHECK	:	\$1,270.35	REF NUM:	1336
CHECK	:	\$15,016.00	REF NUM:	1462
CHECK	:	\$116,252.67	REF NUM:	0060026401



CITY OF ITHACA

108 East Green Street — 3rd Floor Ithaca, New York 14850-5690

DEPARTMENT OF PLANNING, BUILDING, ZONING & ECONOMIC DEVELOPMENT

Gino Leonardi, Secretary to the Board of Zoning Appeals

Telephone: 607-274-6550

Fax: 607-274-6558

Email: gleonardi@cityofithaca.org

**— NOTICE OF APPEAL —
REGARDING ZONING OR SIGN ORDINANCE
CITY OF ITHACA, NEW YORK**

APPEAL NO. ZONE-25-9

TO: Owners of Property within 200 feet of 224 Floral Avenue and 410 Hudson Street and others interested.
(property address)

FROM: Harris Beach Murtha Cullina PLLC applicable to property named above, in a(n) R-2c and R-2a zone.
(name of person or organization making appeal)

REGARDING:

(check appropriate box)

- ☐ Area Variance
☐ Special Permit
☐ Use Variance
☐ Sign Variance
☒ Action, Decision, or Interpretation of Zoning Officer

City regulations require you be notified of this appeal to the Board of Zoning Appeals (BZA), as described in the attached letter and provide the opportunity for you to comment on it and/or attend the meetings listed below. Anyone considered an interested party may speak for or against the appeal at the meetings listed below, or submit a written statement to the BZA before its designated meeting. There is a time limit of three (3) minutes for each interested party to address the BZA during the Public Hearing portion of the meeting.

The Board of Zoning Appeals bases its decision primarily on the written evidence submitted and presented to it, the testimony of interested parties, and zoning and legal considerations. The written case record will be available for review at the Zoning Division, City Hall, 108 E. Green St., Third Floor, beginning one week before the scheduled BZA meeting. This case has also been referred to the City's Planning and Development Board that will advise the BZA, if granting the relief sought by the appellant will affect long-term planning objectives. The date of the Planning Board's meeting regarding this appeal is also listed below.

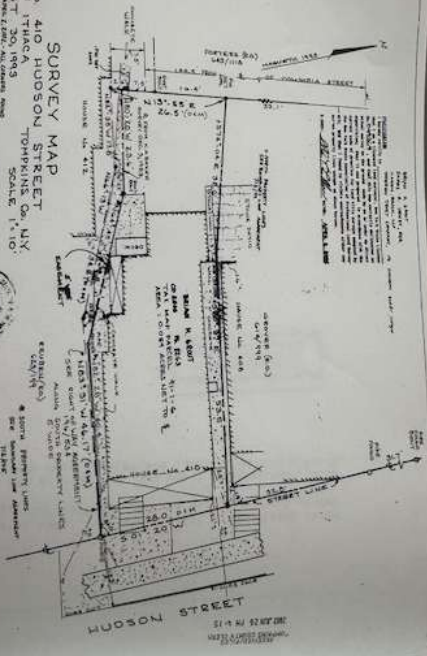
The **BOARD OF ZONING APPEALS** will consider this case on 1/6/26 at 5:30 P.M. in Common Council Chambers, City Hall, 108 E. Green St. Ithaca.

[Signature]
Signature of Appellant

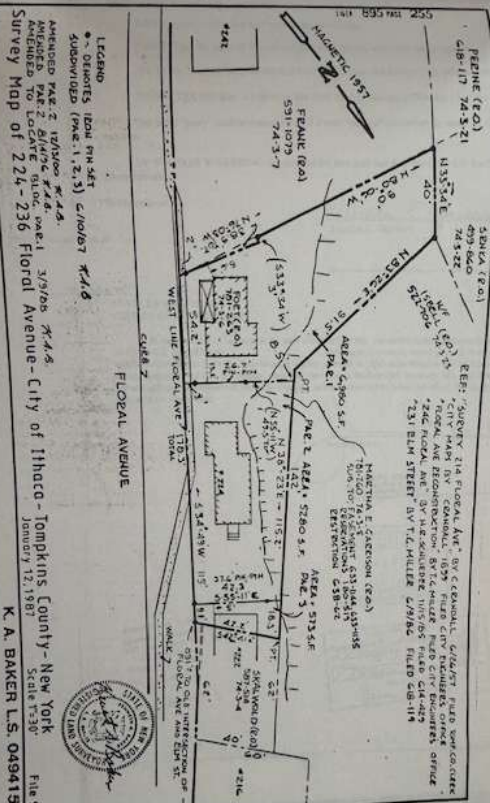
4551 NE 2nd Ave Ft Lauderdale FL 33334
Address

11/11/25
Date

SURVEY MAP
NO. 410 HUDSON STREET
CITY OF ITHACA
TOMPKINS CO. NY
AUGUST 30, 1983
SCALE 1"=10'
ENGINEERS & SURVEYORS
DRIVER 11/11/83



ALL RIGHTS RESERVED
 NO PART OF THIS MAP
 MAY BE REPRODUCED OR
 TRANSMITTED IN ANY FORM
 OR BY ANY MEANS
 WITHOUT PERMISSION IN
 WRITING FROM THE
 ENGINEERS & SURVEYORS



LEGEND
 * - DIMENSIONS (FEET INCHES)
 SUBDIVISION (PAC 1, 2, 3) C/10/87 K.A.B.
 AMENDED PAC 2 10/30/80 K.A.B.
 AMENDED PAC 2 8/14/80 K.A.B.
 AMENDED TO LOCATE PLAT CORNER 3/9/85 K.A.B.
Survey Map of 224-236 Floral Avenue - City of Ithaca - Tompkins County - New York
January 12, 1987
Scale 1"=30'
K. A. BAKER L.S. 049415

